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PART II

Other Notifications, Orders, etc.

**GOVERNMENT OF PAKISTAN
OFFICE OF THE CHIEF COMMISSIONER
ISLAMABAD CAPITAL TERRITORY**

NOTIFICATION

Islamabad, the 23rd January, 2015

S.R.O. 82 (I)/2015.—Reference this office Notification No.5(12)- Law/ 2014-1278, dated 10-04-2014 and by exercising the powers conferred by virtue of Section 43 of the Motor Vehicle Ordinance, 1965 (The West Pakistan Ordinance XIX of 1965) read with Justice Division's Notification No. F. 17(2)/80-Pub., dated 31-12-1980, issued in pursuance of Article 2 of Islamabad Capital Territory (Administration) Order, 1980 (P.O. No. 18 of 1980) and all other powers enabling him in this behalf, the Chief Commissioner, Islamabad Capital Territory is pleased to substitute following sections of "Islamabad Capital Territory (Seizure and Disposal of Motor Vehicles) Rules, 2014, which shall be now read as under:

3. **Possession.**—Any motor vehicle the registration certificate of which has been cancelled under section 35 of the Ordinance, or a motor vehicle detained under section 115 of the Ordinance, or a motor vehicle the keeper of which fails to produce any valid documents in support of this claim of ownership of possession over the vehicle to the satisfaction of Excise and Taxation Officer or *prima facie*, the chassis plate appears to be tempered with or cut/weld shall be taken into possession by the officer.

(321)

Price : Rs. 02.00

5. **Procedure after taking possession (3).**—The MRA on receipt of the report under rule (1) shall issue notices to the owner or keeper through registered posts with acknowledgement due, asking him to appear before him within 02 weeks and establish that he is a *bonafide* owner/possessor of vehicle and that any tempering to the chassis plate is on *bonafide* grounds.

(5):— If the owner/possessor establishes that he is rightful owner or possessor of the vehicle and that any tempering to the chassis plate is on *bonafide* grounds, the MRA shall, under his seal, direct the officer incharge of the warehouse to deliver the vehicle to him under intimation to the officer who seized the vehicle.

6. **Proclamation.**—In case the owner of keeper of the vehicle fails to respond to the notice given to him under sub-rule (3) of rule 05, or fails to establish his *bonafide* ownership with regard to the vehicle or fails to establish that any tempering to the chassis plate on *bonafide* grounds, the MRA shall issue a proclamation specifying the full particulars of the vehicle and require any person who may have any claim whatsoever thereto, to appear before him for establishing his claim within two weeks time from the date of issue of such a proclamation. The proclamation shall be made in accordance with the procedure as specified by the Director General, under intimation to the Government.

7. **Confiscation.**—If no claim is received pursuant to the proclamation made under the rule 06, the MRA shall record his order for confiscation of vehicle and confiscate the same in favor of Government and subject to rule 08, dispose the vehicle by way of sale in an open auction through an auction committee to be constituted by the Government. The sale proceeds thereof, after clearance of the dues of the custom department, if any, in the form of custom duty, sales tax etc. be paid into government Treasury:

Provided that the confiscated vehicle in which no other number is deciphered on its chassis plate is refitted and welded, will not be put to sale by way of auction. Such vehicles shall be retained in the Excise and Taxation Department for performance of officials duties or allotment to other Departments of Government for official duty, by the Director General, after fulfilling all the codal formalities.

BY ORDER OF THE CHIEF COMMISSIONER,
ISLAMABAD CAPITAL TERRITORY
EXERCISING THE POWERS OF
PROVINCIAL GOVERNMENT

[No. 5 (12)-Law/2014-379.]

MUHAMMAD MUNEER,
Deputy Director (Admin).